

Chapter Nine Constitutional Interpretation

- Interpretation is a process of giving meaning to the phraseology of the law. It is reducing the law into reality.
- Interpretation is the art or process of discovering and expounding the intended signification of the language used, that is, the meaning which the authors of the law designed to convey to others

Constitutional Interpretation

- Constitutional Interpretation, Meaning?
 1. Review of constitutionality of laws and actions of the state authorities that that may contravene the constitution
 2. Expounding on the text of the constitution , this may relate to any type of dispute that may arise in relation to the constitution or its provisions

Constitutional interpretation envisages a situation where somebody tries to “effectuate the intent of those individuals who drafted the constitution and the electorate which ratified it.” Constitutional language is always the product of group effort and compromise and may be deliberately chosen to be bridge over difference of opinion.

Therefore, the intentions involved, here, are the intentions of many individuals who participated to a greater or less degree at various stages in the process of constitutional draftspersonship and subsequent ratification.

Constitutional Interpretation

- Constitutional interpretation, or constitutional construction is the process assigned to words in a constitution by which legal decisions are made that are justified by a constitution, although not necessarily correctly.
- Constitutional controversies are about whether an official act is consistent with, and authorized by, a constitution or constitutional statute or court decision.
- Since a constitution is a law, and the supreme law within its domain, and authorizes statutes and other official acts which have a textual expression, the principles of constitutional interpretation are essentially the same as the principles of statutory or judicial interpretation.

Need For Constitutional Interpretation

- Laws are expressed in words which usually lack definite and certain meaning
- Vagueness and ambiguity are just two factors for meaning uncertainty
- The subjectivity of meaning is the source of uncertainty
- Compared to legislations constitution is much more general making interpretation much more crucial

Methods of Constitutional Interpretation

- Most legal scholars recognize six main *methods* of interpretation: *textual*, *historical*, *functional*, *doctrinal*, *prudential*, *equitable*, and *natural*, although they may differ on what each includes, and there is some overlap among them.

Methods of Constitutional Interpretation

1.Textual

- Decision based on the actual words of the written law, if the meaning of the words is unambiguous.
 - Since a law is a command, then it must mean what it meant to the lawgiver, and if the meaning of the words used in it have changed since it was issued, then textual analysis must be of the words as understood by the lawgiver, which for a constitution would be the understanding of the ratifying convention or, if that is unclear, of the drafters.
- Some Latin maxims: A verbis legis non est recedendum. From the words of the law there is not any departure. Meaning of words may be ascertained by associated words.

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2. Historical

- Decision based less on the actual words than on the understanding revealed by analysis of the history of the drafting and ratification of the law, for constitutions and statutes, sometimes called its legislative history, and for judicial edicts, the case history.
- A textual analysis for words whose meanings have changed therefore overlaps historical analysis.
- It arises out of such Latin maxims as *Animus hominis est anima scripti*. Intention is the soul of an instrument.
- Functional. (Also called structural.) Decision based on analysis of the structures the law constituted and how they are apparently intended to function as a coherent, harmonious system. A Latin maxim is *Nemo aliquam partem recte intelligere potest antequam totum perlegit*. No one can properly understand a part until he has read the whole.

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3. Doctrinal.

- Decision based on the prevailing practices or opinions of legal professionals, mainly legislative, executive, or judicial precedents, according to the meta-doctrine of **stare decisis**, which treats the principles according to which court decisions have been made as not merely advisory but as normative.
- Some Latin maxims are: Argumentum à simili valet in lege. An argument from a case avails in law. Consuetudo et communis assuetudo ... interpretatur legem scriptam, si lex sit generalis.
- Custom and common usage ... interpret the written law, if it be general. Cursus curiæ est lex curiæ.
- The practice of the court is the law of the court. Judiciis posterioribus fides est adhibenda.
- Credit is to be given to the latest decisions. Res judicata pro veritate accipitur. A thing adjudicated is received as true.

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4. Prudential

- Decision based on factors external to the law or interests of the parties in the case, such as the convenience of overburdened officials, efficiency of governmental operations, avoidance of stimulating more cases, or response to political pressure
- One such consideration, avoidance of disturbing a stable body of practices, is also the main motivation for the doctrinal method. It also includes such considerations as whether a case is "ripe" for decision, or whether lesser or administrative remedies have first been exhausted.
- A Latin maxim is *Boni judicis est lites dirimere*. The duty of a good judge is to prevent litigation.

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6. Equitable.

- Also called *ethical*. Decision based on an innate sense of justice, balancing the interests of the parties, and what is right and wrong, regardless of what the written law might provide.
- Often resorted to in cases in which the facts were not adequately anticipated or provided for by the lawgivers.
- Some scholars put various balancing tests of interests and values in the prudential category, but it works better to distinguish between *prudential* as balancing the interests and values of the legal system from *equitable* as balancing the interests and values of the parties.
- It arises out of the Latin maxim, *Æquitas est perfecta quædam ratio quæ jus scriptum interpretatur et emendat; nulla scriptura comprehensa, sed sola ratione consistens*.
- Equity is a sort of perfect reason which interprets and amends written law; comprehended in no code, but consistent with reason alone.

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7. Natural.

- Decision based on what is required or advised by the laws of nature, or perhaps of human nature, and on what is physically or economically possible or practical, or on what is actually likely to occur.
- This has its origin in such ancient Latin maxims as: *Jura naturæ sunt immutabilia.*
- The laws of nature are unchangeable. *Impossibilium nulla obligatio est.* There is no obligation to do impossible things. *Lex non cogit ad impossibilia.*

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- The law does not compel the impossible. *Lex neminem cogit ad vana seu inutilia peragenda.*
- The law requires no one to do vain or useless things. *Legibus sumptis desinentibus, lege naturæ utendum est.*
- Laws of the state failing, we must act by the law of nature.
- Within these methods, we can, by study of the writings of the Founders, and the writings they read, elicit such principles for interpreting the Constitution for the United States as the following:

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Three approaches

We have three main approaches to interpretation or construction:

1. Seek original intent, or what the lawgiver hoped the words would accomplish, which in turn can be divided into:

1. Motivational intent
2. Functional intent

2. Seek original public (legal) meaning of the lawgiver.

3. Use the (common law) rules of interpretation accepted by the lawgivers.

Models of constitutional Interpretation

Judicial review- the power of the court to declare legislations unconstitutional
–US

Specialized constitutional court

- A specialized constitutional court alternative model to judicial review
- Austria, Germany, South Africa

Special consultative organ or quasi judicial

- before the law is passed
- Unreviewable ant-majoritarian biases
- Finland

Legislature the interpreter of the constitution

- Netherlands

Ethiopian experiment

- HOF a non legislative parliament (except constitutional ammendment)
- Composition is different from other parliamentary systems
- Articles 83-84
- HOF assisted by CCI
- **CCI** – advisory body
- HOF as a political organ?

- The FDRE Constitution is silent as to whether or not an international human rights convention would prevail over a proclamation, in case of conflict.
- Indubitably, a conflict between an international human rights convention and a proclamation may emerge in two situations: where the convention is ratified and published before and after the proclamation is enacted. Prior to suggesting as to what the Ethiopian constitutional position should be, it might first be advisable to turn our attention to the different positions employed by states to address the conflict between conventions and national laws of equal status.

- In addressing a conflict between a ratified international human rights convention and a proclamation, three widely accepted positions may be identified.
- The first pertains to that position of states conferring superior status to a convention over a national law.
- France, Italy, The Netherlands, Luxembourg and Portugal are few of those states adhering to this position.
- The French Constitution of 1946 was the first Constitution to take a step in this direction. The tradition continued in the Constitution of 1958 and was followed by the constitutions of former French colonies. Accordingly, the national laws are set aside irrespective of the kind of the convention and whether the law is anterior or posterior to the convention.